

Parvati Devi v. Purvanchal Vidhut Vitrana Nigam, Varanasi

High Court of Judicature at Allahabad · Division Bench · 12 December 2025 · Writ-C No. 43924 of 2025 · **Writ disposed; Executive Engineer to decide a fresh representation in accordance with law.**

HEADNOTE

Where a Clause 6.5 objection to a disconnection memo and a claim for one bill on the meter's final reading remain pending, the High Court will not decide the billing dispute on merits. The consumer may file a fresh representation before the Executive Engineer, who shall decide it in accordance with law after notice and hearing.

FACTUAL SUMMARY

Parvati Devi obtained a 7.5 HP connection from PuVVNL on 15 July 2017. The meter showed no current, so no bills issued. After her complaint the meter was changed on 23 January 2021, still without a reading. On 21 March 2025 the licensee disconnected on a recorded 4468 KWH and arrears of Rs 4,23,419. She objected under Clause 6.5 on 1 November 2025 seeking restoration and a single bill on that final reading; the objection remained pending when she approached the High Court.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending billing objection

HOLDING

A writ seeking a single bill from inception on the meter's final reading, while a Clause 6.5 objection to disconnection and arrears remains pending, is disposed without examining merits; the consumer may submit a fresh representation to the Executive Engineer, who shall consider and decide it strictly in accordance with law after notice and opportunity of hearing. ¶ 5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER ONE BILL FROM INCEPTION IS DUE ON THE FINAL READING OF 4468 KWH, AND WHETHER DISCONNECTION AND ARREARS OF RS 4,23,419 ARE SUSTAINABLE

Court expressly declined to go into merits; Executive Engineer to decide the representation in accordance with law. ¶ 5